

Development Board Act, 1956

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Development Committee Act, 2013

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Amending Acts

1. Development Committee (First Amendment) Act, 2013 2013.9.5 2013.9.7
2. Development Committee (Second Amendment) Act, 2014 2014.11.12 2014.11.19

Royal Seal and Publication Date

3. Development Committee (Third Amendment) Act, 2018 2018.4.5
4. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16
5. Judicial Administration Reform Act, 2031 2031.4.18
6. Judicial Administration Act, 2048 2048.2.16

Certification and Publication Date

7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
8. Some Nepal Acts Amendment Act, 2072 2072.11.13
9. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 3 of the year 2013

Whereas it appears necessary to make proper arrangements for the speedy and smooth implementation of development plans and development works, this Act is hereby enacted and issued by His Majesty the King on the advice of the Council of Ministers. 1. Short Title and Commencement: (1) This Act may be called the "Development Committee Act, 2013".

(2) This Act shall come into force immediately throughout the Kingdom of Nepal. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Committee" means a committee formed under Section 3 or 3A.

(b) "Foreign Agency" includes any foreign state, international or foreign institution.

(c) "Notified Order" means an order published in the Nepal Gazette. 3. Power of the Government of Nepal to Form a Committee: (1) The Government of Nepal may, if it deems appropriate or necessary, by a notified order, form a committee to implement any development plan or development work as specified in that order.

(2) Each notified order under Sub-section (1) shall specify the functions and duties of the committee, and may also make provisions for other related matters.

(3) The committee shall consist of persons appointed by the Government of Nepal as determined Added by the First Amendment.and shall be known by such name as specified in the order forming the committee. 3A.

Power of the Provincial Government to Form a Committee: (1) If a plan, project or institution formed and operated under this Act and transferred from the Government of Nepal to the provincial government needs to be operated as a development committee, the provincial government may, if it deems necessary, form a committee by publishing a notice in the Provincial Gazette. (2) The order under Sub-section (1) shall specify the functions and duties of the committee, and the committee shall be known by such name as specified in the order at the time of formation. (3) The committee shall consist of three persons appointed by the provincial government on the basis of criteria specified in the notified order. (4) After the plan or project under Sub-section (1) is implemented, the committee formed accordingly shall automatically dissolve, and notice thereof shall be published in the Provincial Gazette. 4. Committees to be Bodies Corporate: Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.Each committee formed under Section 3 or 3A shall be a body corporate with perpetual succession, and shall have a common seal for all purposes of the committee, and shall have the power to acquire, hold and dispose of movable and immovable property as a person. The committee may sue and be sued in its corporate name. 5. Fund of the Committee: (1) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.The fund of a committee formed under Section 3 or 3A shall consist of the following: (a) Money provided by the Government of Nepal or any other non-governmental person, and (b) Funds given by any foreign agency through the Government of Nepal. (2) The money and fund of the committee shall be utilized for implementing the works and programs specified in the order issued for forming the committee. (3) Amended by the Second Amendment.The committee shall work in accordance with the programs and procedures specified in the rules made by itself, and shall also maintain accounts accordingly. Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.Provided that, the rules made by a committee under an order issued under Section 3 shall require the approval of the concerned ministry of the Government of Nepal, and the rules made by a committee under an order issued under Section 3A shall require the approval of the concerned ministry of the provincial government. (4) Repealed by the Some Nepal Laws (Amendment and Reorganization) Act, 2020 6.

Employees of the Committee: (1) The committee may appoint employees as necessary for the smooth conduct of its work. Provided that, Amended by the Some Nepal Laws (Amendment and Reorganization) Act, 2020.no person shall be appointed by any method other than the principles and methods approved by the Public Service Commission.

(2) It shall be lawful for the committee to accept the services of permanent officers of the Government of Nepal or any other foreign agency for a limited period, and while performing the work of the committee, such officers shall be under the administrative control of the committee. Provided that, the conditions of their original service shall not be affected by reason of such deputation. 7. Power of the Government of Nepal to Issue Orders and Rules: The Government may, from time to time, issue rules or orders regarding the work and proceedings of the committee, and it shall be the duty of the committee to comply with such rules or orders. 8. Dissolution of the Committee: (1) If the Government of Nepal considers that any development plan or development work being implemented by the committee can be implemented more smoothly by the Government of Nepal itself, or that the work thereof has been completed, the Government of Nepal may, by a notified order, dissolve the committee.

(2) In the event of dissolution of the committee:

(a) All rights, properties and debts of the committee shall vest in the Government of Nepal.

(b) All contracts taken with the committee shall be deemed to be taken with the Government of Nepal.

(c) Repealed by the Third Amendment

9. Settlement of Disputes by Arbitrator: Section 9 added by the Second Amendment and the former Section 9 renumbered as Section 10.(1) If any agreement with the committee contains a provision that disputes arising in relation to such agreement and its implementation shall be referred to an arbitrator for decision, the arbitrator appointed in accordance with such agreement shall decide such dispute, and no court shall have jurisdiction to hear and determine such dispute.

(2) The arbitrator shall have the power to take evidence, summon witnesses and require production of documents in relation to a dispute referred to him under Sub-section (1) for decision.

(3) The decision of the arbitrator shall be final and binding on both parties.

Provided that, upon application of the aggrieved party, the High Court may set aside such decision in the following circumstances:

(a) If it clearly appears that the arbitrator has shown improper conduct while making the decision, or has made a clearly wrong decision with apparent bad faith, or has acted arbitrarily, or

(b) If the arbitrator's decision is manifestly contrary to law.

(4) If such decision is set aside by the High Court, the dispute shall be referred for decision to Amended by the Some Nepal Acts Amendment Act, 2072.another arbitrator appointed by the Chief Judge of that Court.

(5) A decision made by an arbitrator shall be executed as prescribed by the court of execution or the office performing the work of execution designated by the Government of Nepal.

(6) The Government of Nepal may make rules for the purpose of implementing this Section. 10. Non-application of Laws: Former Section 9 renumbered as Section 10 by the Second Amendment.For the avoidance of doubt, it is hereby clarified that the provisions of the Muluki Ain or the chapters of the Muluki Act relating to recovery of dues, verification of documents, or examination of accounts shall not apply to the work of the committee.